IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT – IV

Item No. 108
New IA/136/ND/2023 in CP(CAA)/30/ND/2020

IN THE MATTER OF:

Clearview Healthcare Pvt Ltd ... Applicant
And
Clearmedi Healthcare Pvt Ltd

Order under Section 230-232.

Order delivered on 13.04.2023

Coram:
MR. P.S.N. PRASAD
HON'BLE MEMBER (JUDICIAL)
DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant : Mr. Alok Kumar Tripathi, PCS
For the Respondent :

ORDER

New IA/136/ND/2023

We have heard the submissions made by the Authorised Representative of the petitioners. The Authorised Representative has prayed for grant of leave of the Tribunal to withdraw the amalgamation proposal of the shareholders and creditors of M/s. Clearview Healthcare Pvt Ltd and M/s Clearmedi Healthcare Pvt Ltd. From the submissions made by the Authorised Representative, it transpires that the Ist Motion Proposal was already approved and cleared vide order dated 24.01.2019 in CA No. 160/ND/2019. Therefore, the said order passed in the said CA No. 160/ND/2019 may be treated as recalled by this Tribunal, in view of the present withdrawal application filed by the Authorised Representative of the petitioners.

The present application is made under Rule 11 of NCLT Rules, 2016 seeking withdrawal of scheme of amalgamation of the respective shareholders and creditors of both the companies. Having heard the submissions made by the Learned Counsel, the joint application made on behalf of the petitioners under Rule 11 of NCLT Rules, 2016 read with Section 230-232 of Companies Act, 2013 praying for withdrawal the scheme of amalgamation of M/s Clearview Healthcare Pvt Ltd and M/s Clearmedi Healthcare Pvt Ltd. is hereby accepted. Learned Counsel for the petitioner is permitted to withdraw the matter in view of the Board Resolutions passed by the respective boards.

Both CA NO. 160/ND/2019 as well as the present application bearing CP(CAA)/30/ND/2020 are dismissed as withdrawn.

The case folders and connected papers may be consigned to record-room.

Sd/-
DR. BINOD KUMAR SINHA
MEMBER (TECHNICAL)

Sd/-
P.S.N. PRASAD
MEMBER (JUDICIAL)

Mukesh